

Smt. Nikita Rajak vs Rahul Kumar Rajak on 26 February, 2024

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HIGH COURT OF CHHATTISGARH, BILASPUR

FA(MAT) No. 121 of 2023

- Smt. Nikita Rajak W/o Rahul Kumar Rajak Aged About 31
Years Presently Resident At B-22, Panchwati Colony, District :
Dhamtari, Chhattisgarh

---- Appellant

Versus

- Rahul Kumar Rajak S/o Shri Gautam Rajak Aged About 32
Years R/o Ranbhantha, P. O. Bunga, P.S. Pufsaar, District :
Raigarh, Chhattisgarh

---- Respondent

FA(MAT) No. 210 of 2022

- Smt. Nikita Rajak W/o Rahul Kumar Rajak Aged About 31
Years Presently Resident At B-22, Panchwati Colony,
Dhamtari (C.G.)

---- Appellant

Versus

- Rahul Kumar Rajak S/o Shri Gautam Rajak Aged About 37
Years R/o Ranbhantha, Po Bunga, Ps Pusaur, Raigarh (C.G.)

---- Respondent

For the Appellant
For the Respondent

Shri Raja Sharma, Advocate.
Shri Sumit Singh, Advocate appears
on behalf of Shri Rohit Sharma,
Advocate
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Hon'ble Shri Justice Goutam Bhaduri and
Hon'ble Shri Justice Radhakishan Agrawal

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ORDER ON BOARD
(26/02/2024)

Per Goutam Bhaduri, J.

1. Heard.

2. The challenge in this appeal is to the order dated 19/09/2022, whereby the decree of divorce has been granted in Civil Suit No. 66-A/2021 in favour of the husband. The challenge is by the wife against a decree granted to the husband. Another appeal which is filed by the wife is against the restitution of conjugal rights, which was granted in favour of the husband under Section 9 of the Hindu Marriage Act on 21/08/2018. On the basis of such decree of restitution of conjugal rights, subsequent judgment and decree of divorce under Section 13(1)(i-a) 13(1)(i-b). Along with challenge to the restitution of conjugal rights, an application is also filed under Section 5 of the Limitation Act, 1963.

3. During the pendency of this, an application has been filed by the parties under Section 13-B of the Hindu Marriage Act for passing a compromise decree. The parties are present in person before this Court.

4. As per the compromise application, the husband has undertaken to pay a demand draft of Rs.24 Lacs towards the permanent alimony in full and final settlement and a consequent thereon, the wife has also agreed to withdraw the maintenance case and FA (MAT) No.121 of 2023 and further has agreed to withdraw the Criminal Appeal pending at District & Sessions Court, Rajnandgaon against acquittal under Section 498-A of Indian Penal Code. The wife further submits that she would not claim any right over the ancestral property of the husband in present or future. An application has also been filed to condone the cooling off period in filing of the application under Section 13-B of Hindu Marriage Act as the said application was filed on 24/02/2024. The appellant and the respondent are present in person before this Court and they agreed to divorce. It is further submit that they are living separately for last seven years and they cannot go along and wanted to get separate to part their ways.

5. Since the application under Section 13-B of Hindu Marriage Act has been filed in First Appeal (MAT) No. 210 of 2022, which was predominantly against the decree granted to the husband under the Hindu Law, the husband who is present in Court also does not object to the fact that the finding recorded in such appeal may be set-aside as they have mutually agreed to get the divorce under Section 13-B of Hindu Marriage Act.

6. Accordingly, we set-aside the finding and the judgment and decree dated 19/09/2022 as in furtherance of the development, parties have filed an application under Section 13-B of Hindu Marriage Act as the ultimate result would be the divorce. The husband also produced the original demand draft of Rs.24 Lacs drawn in favour of the wife dated 05/02/2024 of State Bank bearing No.

726467, which is handed over to the wife, who accepts the same.

7. The Supreme Court in a case law reported in (2017) 7 SCC page 746 - Amardeep Singh Vs. Harveen Kaur has held that in the year 1976, the concept of divorce by mutual consent was introduced and however, section 13-B(2) contains a bar to divorce being granted before six months of time elapsing after filing of the divorce petition by mutual consent. The said period was laid down to enable the parties to have a rethink so that the court grant divorce by mutual consent only if there is no chance for reconciliation. The Supreme Court has further laid down the following principles at para 19 :

"19. Applying the above to the present situation, we are of the view that where the court dealing with a matter is satisfied that a case is made out to waive the statutory period under Section 13-B(2), it can do so after considering the following:

(i) the statutory period of six months specified in Section 13-B(2), in addition to the statutory period of one year under Section 13-

B(1) of separation of parties is already over before the first motion itself;

(ii) all efforts for mediation/conciliation including efforts in terms of Order 32-A Rule 3 CPC/Section 23(2) of the Act/Section 9 of the Family Courts Act to reunite the parties have failed and there is no likelihood of success in that direction by any further efforts;

(iii) the parties have genuinely settled their differences including alimony, custody of child or any other pending issues between the parties;

(iv) the waiting period will only prolong their agony."

8. Having considered the submission of the parties, we deem it proper to condone to waive the cooling off period as the parties submit that they are residing separately for the last seven years and there is no possibility of any re-union and therefore the waiting period will only prolong their agony. In consequence thereof as both husband and wife decided to stay apart and part their ways, any re-union is not possible and marriage has for all practical purposes come to an end. Considering the same, we grant the decree of divorce and accordingly we order that the marriage dated 22/01/2017 shall stand dissolved by a decree of divorce by mutual consent of the parties henceforth.

9. Since the wife has already received Rs.24 Lacs by a draft which is handed over to her, the undertaking given by the wife that she will not further claim any future alimony in any kind from the husband and shall withdraw the case CRR No.224 of 2023 (Maintenance Case FA (MAT) No. 121 of 2023) which is against the grant of restitution of conjugal rights under Section 9 of Hindu Marriage Act shall be withdrawn.

10. Since the FA (MAT) No. 121 of 2023 is already listed, the same is allowed to be withdrawn. In respect of the CRR No. 224 of 2023, which is a maintenance case and acquittal appeal which is

pending before the Sessions Court, Rajnandgaon against acquittal under Section 498-A of IPC shall be withdrawn by the wife.

11. Accordingly, both the appeals stand disposed of with the aforesaid observations.

Sd/-
(Goutam Bhaduri)
Judge

Sd/-
(Radhakishan Agrawal)
Judge

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